

ORDER ON BAIL APPLICATION

Section 437, Code of Criminal Procedure, 1973 — case under IPC 420, 467, 468, 471 r/w 120B

1. FACTS IN BRIEF

The applicant Rajesh Kumar has filed this application seeking bail in respect of Crime No. 118/2026 of MIDC Andheri (East) PS. The complainant alleges that the applicant dishonestly induced him to part with ₹62,00,000 on the representation of a non-existent real-estate project, using forged documents. The applicant was arrested on 12-Mar-2026 and has been in judicial custody since 13-Mar-2026. Investigation has been completed and the charge sheet was filed on 22-Mar-2026.

2. SUBMISSIONS OF THE APPLICANT

Learned counsel for the applicant submits that (i) the applicant is a permanent resident of Mumbai with no criminal antecedents; (ii) the amount allegedly received was a business loan from a 'friend' and the complainant has misconstrued a civil transaction as a criminal offence; (iii) all documents are in the custody of the investigating agency and there is no possibility of tampering; (iv) the charge sheet has already been filed, thereby concluding the investigation; and (v) the applicant undertakes to abide by any conditions imposed and to cooperate with the trial.

3. SUBMISSIONS OF THE STATE / COMPLAINANT

The Investigating Officer opposes bail contending that the applicant is a flight risk, that he has absconded associates who remain untraced, and that the scale of the fraud (₹62,00,000 dissipated within 48 hours) indicates a well-organised modus operandi. It is further contended that digital forensics on the seized devices is still underway and that the applicant may influence witnesses if released.

4. REASONING & ANALYSIS

The offence of cheating and forgery is not punishable with death or imprisonment for life. The investigation stands completed and the final report has been filed. The documents relied upon by the prosecution are in judicial custody and the witnesses' statements are already recorded. Considering the totality of facts, particularly the completion of investigation, the absence of criminal antecedents, and the applicant's permanent residence, this Court is inclined to grant bail, subject to stringent conditions to safeguard the trial.

5. ORDER

IT IS ORDERED THAT the application for bail is **ALLOWED** on the following conditions:

- The applicant shall furnish a PR bond of ₹3,00,000 with two sureties of the like amount to the satisfaction of the Court.
- The applicant shall surrender his passport before the Investigating Officer and shall not leave the jurisdiction of Mumbai without prior written permission of this Court.
- The applicant shall report to the MIDC Andheri (E) Police Station on the 1st and 15th of every month between 10:00 a.m. and 12:00 noon until the conclusion of trial.
- The applicant shall not contact or influence witnesses, directly or indirectly, and shall not change his residential address without informing the Investigating Officer.

5. The applicant shall appear before the Court on every date of hearing and shall not seek unnecessary adjournments.

Violation of any of the above conditions shall result in cancellation of bail. Sureties to be verified before release.

Sd/-

Dated: 08-Apr-2026

Hon'ble Chief Metropolitan Magistrate

C.C. No. 118/2026

Borivali, Mumbai

Copy to: IO, MIDC (E) PS; Prosecution